

FEATURED

License plate reader bill killed

Legislation regulating Flock cameras fails even as public rage grows across California

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Amid a growing nationwide backlash against license-plate cameras, California this week, for the fifth year running, failed to enact regulations on the technology.

Accept

Deny Non-Essential

A bill in the Legislature would have strengthened privacy protections on how license plate data is collected and shared. It also would have guarded against misuse of automated license plate readers by law enforcement officers.

But after clearing the state Senate the bill was stopped in the Assembly by majority leader Cecilia Aguiar-Curry on Monday, the final day the Legislature meets this year, before it could be introduced for a floor vote. It was one of a handful of bills that enjoyed strong support from lawmakers and looked poised to pass but died under mysterious circumstances.

All the bills California lawmakers have proposed since 2022 to reform or update regulations on license plate tracking by law enforcement agencies have failed to pass or become law. A similar bill passed last year but was vetoed by Gov. Gavin Newsom.

“It’s a really disappointing outcome at a time when there is bipartisan concern about this mass surveillance tool,” UC Berkeley Center for Law & Technology codirector Catherine Crump told CalMatters. Crump testified in support of the bill in July.

Lawmakers pushing for more regulation of the readers point to police misuse of the data they collect, including illegally using it to help federal immigration enforcers and stalking people.

But law enforcement agencies say many of the proposed regulations would cripple a tool they say has helped solve a wide range of crimes.

“We were concerned that this bill was going to limit the utility of ALPR data to solve crimes, find missing persons, exonerate innocent individuals, and so the fact that it did not pass, we’re glad for that,” California State Sheriff’s Association legislative director Cory Salzillo told CalMatters.

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Mounting privacy concerns

Failure to pass the bill or even bring it up for a final vote comes at a time when opposition to license plate readers is growing in and beyond California. Police in Los Angeles and Redwood City and elected officials in California localities like El Cerrito and Campbell have ended contracts with the license plate reader company Flock Safety in recent weeks. Nationwide, more than 200 cities or law enforcement agencies ended license plate reader contracts in August, more than any other month since 2021, according to Secure Justice, a group led by Brian Hofer, a Bay Area privacy advocate who was held at gunpoint after a license plate reader incorrectly told sheriff's deputies he was driving a stolen car.

License plate readers use cameras and artificial intelligence to log the plate numbers of passing cars. The readers are joined into networks used by law enforcement and information from them can be shared locally or nationwide. The tech can locate criminal suspects or missing persons, but it's also been tied to police misconduct and immigration enforcement in violation of state law. More than 230 California police or sheriff's departments currently use license plate readers, according to bill author Senator Sabrina Cervantes, a Democrat from Riverside.

"It's unfortunate that Senate Bill 1013 did not get the chance to be voted on before the deadline passed, but I look forward to continuing to fight for the privacy rights of Californians next year," she wrote in a statement shared with CalMatters.

Cervantes argued in July that protections in the bill are necessary to prevent unlawful data sharing, because license plate readers routinely collect information about the movement of millions of law-abiding Californians, and to stop other forms of police misconduct. Lawmakers say license plate readers were unlawfully used by law enforcement officers to stalk or harass private citizens in Los Angeles, Marin, Orange, Riverside, Sacramento, San Diego, and Shasta counties.

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Enforcement agencies outside of California have put the technology to even more controversial use. Oakland activist Crystal Zermeño, who attended a protest against the technology outside City Hall last month, said she's concerned about the tech being used to track women who get abortions or by federal authorities.

After Cervantes' bill died, she asked, "How could we not as a state have the political will to do this in a moment when all of these [federal immigration enforcement] attacks are happening and we have limited defense?"

Cervantes' Senate Bill 1013 would have restricted state law enforcement agencies to using license plate data only for locating criminal suspects or missing people, would have made police take privacy and cybersecurity training, would have restricted sharing with national databases by default, and would have required the attorney general's office carry out random audits of license plate reader activity for misuse.

Tools of law and order

Had the bill come up for a vote, it still might have died, given support for the readers as tools of law and order. Nearly 40 law enforcement agencies and police unions opposed the bill.

Regulations in the measure had already been weakened, trading a requirement that police delete license plate data after 30 days for one that they "archive" it after 60 days, at which point they would need to obtain a warrant to search the data, unless it was connected to an active investigation or vehicle hunt. Police argued that old license plate data had helped solve cold cases and missing people investigations, and some, like the California State Sheriff's Association, opposed the bill even after it was watered down. Newsom vetoed last year's bill in part because it would have ordered police to delete license plate data after 60 days.

CalMatters reporting last year and this year found that local law enforcement agencies across Southern California repeatedly shared information with federal immigration agencies, a violation of a state law. A 2020 state audit and investigation by Attorney General Rob Bonta found similar violations of state law that prohibits sharing license plate reader data with out-of-state or federal law enforcement agencies. Since June 2024 the California Attorney General's Office has contacted 18 law enforcement agencies about possible or known violations of Senate Bill 34 and filed a lawsuit against the city of El Cajon near San Diego to stop the practice.

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Misuse

There are roughly 70 documented instances nationwide where police officers misused automated license plate readers to do things like track their wives, stalk former partners or pursue love interests, according to the Washington Post, including former Riverside County sheriff's deputy Alexander Vanny, who used Flock to stalk his former fiancée and was sentenced to six years in prison in February.

The technology can also inaccurately label some drivers as criminal suspects, leading to potentially violent confrontations. A Los Angeles Police Department audit released in July found that one out of three vehicles identified as stolen by Flock cameras were inaccurately identified.

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